No 9. Peking, October 5th, 1874.

Your Excellency:

Referring to a claim which has been filed in the colonization office by Dr. Manson, on account of losses sustained by him in the sale of horses and other stock which he had bought in Amoy by order of H. I. J. M's Government, and which he resold without authority, I have now the honor to hand you copies of a correspondence between the brother of Dr. Manson and myself.

Dr. Manson and his brother are British subjects, and, with Dr. Jones, practice medicine in Amoy under

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the firm name of Dro. Jones & Manson.
Their reputation is of the best, and
I know through experience that they
are excellent physicians. They are
anxious to be appointed medical
officers to the Japanese Consulate
at Amoy, and I have promised to
recommend them for that office to
Your Excellency, under such terms
as may be arranged by H. I. J. M's
Consul at Amoy, acting by order
of His Excellency, the Minister of
Foreign Affairs.

I have the honor to be,
Your Excellency's
Most Obedient humble Servant,

Chs. W. LeGendre

His Excellency
Okuma Shigenobu,
Minister of Colonization,
etc. etc etc.

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Enclosure No. 1.
with Despatch No. 9.

Amoy, 30th August.

Dear General Le Gendre:

By last mail I wrote to my brother informing him of my conversation with you concerning him, and of the very slight chances he had of recovering the money lost by his precipitate, but, to a certain extent, compulsory line of action. He had not only to consider his own position, but mine, and that of Dr. Jones also. For it was told him distinctly that if he had anything to do with the Japanese in the Formosa business, the firm of Drs. Jones & Manson could no longer hold the appointment of Customs

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Medical Officers. This would have been very serious at this present time, as we have an 'opposition' in our practices. I believe that his action in the matter was thoroughly unselfish though to outsiders it appears to have been a very foolish one. Such statements as these can of course have no weight in a business point of view, yet I trust that his line of conduct was in your opinion justified by them. I have asked my brother to write to you.

When you were in Amoy it was my intention to have asked you to recommend our firm as medical officers to the Japanese Consulate at Amoy, that is, if they intend to have any such. At the time I did not like to trouble you, seeing that you had so much to

think about. I hope that you may have time to say a good word for us in this matter.

With best wishes,

I remain,

Yours very truly,

(signed) David Manson.

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Enclosure No. 2.
with Despatch No. 9.

Peking, September 29th, 1872.

My dear Dr. Manson;

I have to acknowledge the receipt of your note of the 31st of August, wherein you refer to our conversation re Amoy, in the course of which I stated that, in my opinion, your brother has no claim, either in equity or in law, to indemnification from the Japanese government for the loss sustained by him in re-selling the stocks bought by him in April last. Had your brother notified me by telegram that he could no longer fulfil the trust he had accepted, and that he must sell the stocks which he had bought at my

Request

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request, I vowed Rawe requested Messrs. Elles & Co. to buy from him the material which, acting under the circumstances which you relate, he so wantonly sacrificed. Since he felt justified in selling this material by Auction, there was no reason why he should not have given me an opportunity to buy it back from him at the same price that he had paid for it. If he did not wish to do this, he could at least have requested Messrs. Elles & Co. to protect my interests by keeping the stock for my account; they would have refunded him his advance, looking to me for repayment as soon as I could be heard from.

That your brother's action was likely to gain for him the approval of the Chinese I doubt not, but it must also have been the means of embarrassing my movements and inflicting upon me a heavy

loss. If I were to reward him for this by refunding him his losses, I would but create a precedent which might be invoked in the settlement of any disputes that may hereafter arise in connection with transactions of the like kind.

That your brother lost his head when warned by the Chinese not to have anything to do with the Japanese expedition, I can easily imagine; and were it not for that fact, I would never forgive him for the injury which he must have felt his precipitate action would inflict upon me, leaving me, as it did, at the eleventh hour, without a physician or interpreter, and without the material which he must have known I much needed, since I had gone to the expense of buying it. And now, besides this, in his judgment, I ought to suffer a further loss of seven or eight hundred dollars! I say I must suffer,

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for I suppose he has enough esteem left for myself not to suppose that I would ever allow the Japanese Government, whose interests it is my duty to defend, to suffer by the fault of my friends.

So much for this claim. As to your request that I recommend your firm to the Government as medical officers to the Japanese Consulate at Amoy, I will do so with much pleasure, and will let you hear of the success I meet with as soon as I can receive a reply from the officer to whom I shall write this day in regard to it.

Wishing to be most kindly remembered to your brother, I remain,

Yours Very truly,

(Signed) Chs. W. Le Gendre

Confidential

Peking, 5 October, 1874.

My dear Mr Okuma,

Regarding the fears which I was given to understand at Amoy were to be apprehended of Captain Cattel being arrested, I now beg to hand you a copy of a confidential letter from Commodore Ammen, the Chief of the Bureau of Navigation, Navy Department Washington, who, on the 23d of March last, at my request granted leave of absence to Captain Cattel. As you will perceive, he gives me, in his letter, the salient points of a memo which he had sent to the President regarding the interference of Mr Fish in the action of Japan in Formosa.

As Commodore Ammen is the officer from whom the order for the arrest of Captain Cattel should come, his communication to me, as now enclosed, is a proof that on July 7th of July last, no such orders had been issued to the admiral

read, which I did, and forwarded two days after to the President a copy of the acts referred to by our Minister and certain points:

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commanding the Squadron on this Station.

Commodore Aumen is a man of high position in the Navy Department, he being virtually the Secretary of the Navy, his immediate chief, the Secretary who is a civilian quite ignorant of of naval matters, relying entirely upon him for advice on all technical matters referring for himself only the decision of such cases as involve political questions. Besides this, he is an intimate friend of the President, they having been at school together, and they now see each other almost every day. I hope that Mr Terashima will make the matter of my arrest in anoy serve to strengthen the hands of my friends who are now defending the interests of Japan in Washington, by showing the inconveniences which have resulted to Japan from the molestation to which Americans, employed in her service according to the stipulations of the treaty between Japan and the United States are subjected at the hands

mentioned to your Brother, I remain,

Yours Very truly,

(Signed) Chs. W. Le Gendre

of both the U. S. Minister in Japan and the U.S. authorities in China.

From the perusal of Commodore Aumen's communication to me, your Excellency will see that he had appealed to make me the subject of his action with the President, but so far, I have not received anything from him. Whether his letter has been lost or whether his efforts have not yet brought about any definite result is more than I can say. If his letter has not been lost, I shall probably soon receive it, in which case I shall lose no time in acquainting you with its contents.

I remain, my dear Mr Okuma,
Your most obedient humble
servant.

Chs. W. Le Gendre

read, which I did, and forwarded two days after to the President a copy of the acts referred to by our Minister and certain points:

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remembrances to your brother, I remain,
Yours Very truly,
(Signed) Chs. W. Le Gendre.

Copy.

Bureau of Navigation,
Navy Department,
Washington, 7th July, 1874.

My dear General,

Your note of the 22nd May duly reached me. I was somewhat surprised at its contents and was sorry to learn that our Minister had taken exception, when it seems to me there was no ground for it.

You of five days ago I called to see the President just as he was about leaving, and I referred to the action of our Minister, when the President handed me a letter from him to read, which I did, and forwarded two days after to the President a copy of the acts referred to by our Minister and certain points:

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1st – That some years ago we landed a force upon the Island of Formosa for the same purpose as the Japanese propose – that of punishing outrage and murder. Therefore, we did under our own flag without protest of the Chinese what the Japanese propose doing under theirs.

Le Gendre, Wasson and Bassell serving under the Japanese Government no more violate neutrality than we did under our own flag.

The interests of humanity demand that the south-east coast of Formosa be held by persons would aid the ship wrecked, and we have a common interest in the success of the Japanese, as we have no reason to hope that action by the Chinese.

2nd – If we permit officers to enter the Japanese service, and that country should, in the exercise of its national duty to protect its subjects and punish violence committed upon them, find itself involved in a war with China,

good faith towards the Japanese would warrant the continuance of our officers in that service to any time previously assented to.

3rd – A violation of neutrality should be considered in a broad light or view. The exercise of the power of Sec. 24 referred to should be entirely in accord therewith. Any exercise of this law to restrain Genl Le Gendre would be unnecessary, officious and, if not insulting to the Japanese, would show at least a want of sympathy with this remarkable people who are so thoroughly in accord with European science and civilization. Our naval officers all agree that whatever impress our races have made upon China, has been reflectively through the Japanese

During our civil war we did not complain of Great Britain allowing her army officers to come over and join the confederates. In our discussions arising out of the "Alabama Claims" we did not regard this act of enough moment to mention it.

3rd – Regarding the chartering of our vessels for an Expedition against Formosa, I see no reason for restraint

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until China either engages in a war with Japan, or to punish these murderers and to hold permanently the southeast coast of Formosa, and to prevent murders and outrage especially as it is a much frequented coast beating to windward in a northeast Monsoon.

I also wrote to Genl Babcock and asked that the President would look to the matter and prevent any interference on the part of our Minister with what was in progress.

I will probably hear in a day or so of what has been done and will inform you without delay.

We are all very well and will be glad to see you when you come.

I do not doubt that the President will correct any action on the part of the State Dep't that may tend to embarrass Japan in so useful an undertaking.

Sincerely Yours
(signed) Dan'l Ammen.

No 10. Peking, October 11th, 1874.

Your Excellency:

I have the honor to acknowledge the receipt of your despatch of the 19th of September, from which I am gratified to learn that my action in publishing the pamphlet entitled: "Is Aboriginal Formosa a part of the Chinese Empire?" has been approved. In connection with your recommendation that I should carefully acquaint you in detail with everything interesting to H. I. J. M's Government that may come under my notice, I beg to state that I have not been directly

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